

Smt Krishna Devi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 December 2024 · 2024:AHC:191420-DB · Writ - C No. 40563 of 2024 · **Disposed; 6.14 instalment plea to be considered on merit**

HEADNOTE

Writ challenging a demand letter of 19 November 2022 and seeking recovery in instalments was disposed of without any examination of the merits. Noting delay of 651 days, the Division Bench left the petitioner at liberty to apply within two weeks under clause 6.14 of the U.P. Electricity Supply Code, 2005, for an instalment facility, to be considered by the Executive Engineer, Electricity Distribution Division I, Moradabad, on its own merit. She may also avail a one-time settlement if one is available.

FACTUAL SUMMARY

Smt Krishna Devi approached the Allahabad High Court against the State of Uttar Pradesh and electricity officials, seeking to quash a demand letter dated 19 November 2022 issued by the Executive Engineer, Electricity Distribution Division I, Moradabad, and the recovery proceedings based on that letter. She also asked that the amount under recovery be received in easy instalments. The writ was instituted 651 days after the demand.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility on electricity recovery

HOLDING

The writ, which sought quashing of the demand letter dated 19.11.2022 and recovery in instalments and was delayed by 651 days, is disposed of without consideration of the merits, with liberty to the petitioner to apply within two weeks under clause 6.14 of the U.P. Electricity Supply Code, 2005. The Executive Engineer, Electricity Distribution Division I, Moradabad, shall consider and decide that application on its own merit.

¶ 3-6

PRINCIPLE TAGS

instalment-payment-clause-6.14 The Court treated clause 6.14 as the route for an instalment facility on the impugned recovery and directed the Executive Engineer to consider such an application on its own merit, without granting instalments or quashing the demand in the writ. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DEMAND LETTER DATED 19.11.2022 AND THE RECOVERY PROCEEDINGS

The Court expressly recorded that it had not considered the merits. ¶ 6

NOT DECIDED — WHETHER AN INSTALMENT FACILITY UNDER CLAUSE 6.14 SHOULD BE GRANTED

Left to the Executive Engineer to consider and decide on the application's own merit. ¶ 4

NOT DECIDED — WHETHER A ONE-TIME SETTLEMENT SCHEME IS AVAILABLE AND APPLICABLE

Liberty reserved only if such a scheme exists. ¶ 5

